



United States
Attorney's Office
District of Massachusetts



Massachusetts Doctor Agrees to Plead Guilty to \$35.5 Million Medicare Fraud Scheme

Friday, April 25, 2025

For Immediate Release

U.S. Attorney's Office, District of
Massachusetts

Defendant allegedly billed Medicare for genetic testing of patients she never communicated with for over three years

BOSTON – A doctor from Boston has been charged and has agreed to plead guilty in connection with a multi-million-dollar health care fraud scheme in which she allegedly defrauded Medicare for genetic testing services she never provided.

Le Thu, 69, is charged and has agreed to plead guilty to two counts of making false statements relating to health care matters. A plea hearing has not yet been scheduled by the Court.

According to the charging documents, from in or about March 2017 through in November 2020, Thu knowingly and willfully engaged in a scheme to deceive the Medicare Program in connection with payments for genetic testing for beneficiaries. Specifically, Thu allegedly signed and/or caused other individuals who had no medical training to sign and submit false medical documentation and orders for beneficiaries' genetic testing – which was generally not covered by Medicare – therefore making it appear that Thu was providing legitimate services. Thu allegedly signed or caused these orders to be signed that falsely claimed she had consulted with beneficiaries, conducted examinations prior to ordering genetic testing, obtained consent, and/or would use the testing results to treat the beneficiaries.

However, it is alleged that Thu did not see, speak to, or otherwise communicate, examine or provide any medical services to Medicare beneficiaries in connection with any of the false orders submitted, without regard to whether the beneficiaries needed the genetic testing. It is alleged that in one of the orders, Thu stated, among other things that the test results would “assist [Thu] in making patient-specific

clinical decisions” and would “directly impact [Thu’s] patient’s medical management.” In connection with that alleged false order, a third-party laboratory billed Medicare approximately \$5,368, for which Medicare paid approximately \$2,886. Thu allegedly falsely stated in another order for genetic testing that the results of the testing would “determine [a] patient’s medical management and treatment decision.” In connection with that alleged false order, a third-party laboratory billed Medicare for over \$24,052.

It is alleged that, as a result of the orders submitted on false medical documentation, Thu caused laboratories to submit approximately \$35.3 million in claims to Medicare based on doctors’ orders containing materially false representations, for which Medicare paid approximately \$25.3 million.

The charges of making false statements relating to health care matters each provide for a sentence of up to five years in prison, three of supervised release and a fine of up to \$250,000 or twice the gross pecuniary gain or loss, whichever is greater. Sentences are imposed by a federal district court judge based upon the U.S. Sentencing Guidelines and statutes which govern the determination of a sentence in a criminal case.

United States Attorney Leah B. Foley; James Crowley, Acting Special Agent in Charge of the Federal Bureau of Investigation, Boston Division; and Roberto Coviello, Special Agent in Charge, Health and Human Services–Office of Inspector General made the announcement today. Assistant U.S. Attorney Howard Locker of the Health Care Fraud Unit is prosecuting the case.

The details contained in the charging documents are allegations. The defendant is presumed innocent unless and until proven guilty beyond a reasonable doubt in a court of law.

Updated April 25, 2025

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